

No. F. 21 (12) 50-P. In exercise of the powers conferred by section 46 of the Pakistan (Administration of Evacuee Property) Ordinance, 1949 (XV of 1949), the Central Government, in supersession of this Ministry's Notifications No. F. 12 (12) 49-P., dated the 18th April 1949, and the 16th June 1949, is pleased to make the following rules, namely:—

THE ADMINISTRATION OF EVACUEE PROPERTY RULES, 1950.

I. PRELIMINARY.

1. *Short title.*—These rules may be called the Administration of Evacuee Property Rules, 1950.

2. *Definitions.*—In these Rules,—

(a) "the Ordinance" means the Pakistan (Administration of Evacuee Property) Ordinance, 1949 (XV of 1949);

(b) "section" means a section of the Ordinance: and, unless there is anything repugnant in the subject or context, all other terms and expressions shall have the same meaning as assigned to them in the Ordinance.

3. *Seal.*—Every Custodian shall have a seal bearing the name of office which he holds and the place where his headquarters are situate.

II. ADMINISTRATIVE.

4. *Conditions of service and furnishing of security.*—(1) All Officers appointed under the Ordinance shall, subject to any special contract to the contrary, be governed by the rules applicable to the class of officers to which they belong.

(2) The Custodian or an Additional Custodian may require such officers as are entrusted with the receipt, custody, disbursement or disposal of any money or property to furnish such security as may be considered adequate.

(3) If any question arises to which class of officers an officer belongs or what security may be considered adequate, the decision of the Central Government shall be final.

5. *Allocation of work, etc.*—(1) Subject to the provisions of the Ordinance, the Central Government may, by general or special order, provide for the allocation or distribution of work to be performed by the Custodian, and Additional, Deputy and Assistant Custodians.

(2) Subject to such orders as the Central Government may make, Additional, Deputy and Assistant Custodians, and other officers or persons to whom the Custodian delegates any of his functions under the Ordinance, shall discharge, under the general superintendence and control of the Custodian, such duties as may be assigned to them, and within such areas as may be specified, by the Custodian.

(3) Notwithstanding any duties assigned or areas specified by the Custodian in pursuance of sub-rule (2), the Custodian may, at any time, of his own motion or on application made in this behalf, transfer any case pending before any Additional, Deputy or Assistant Custodian to any other Additional, Deputy or Assistant Custodian under his superintendence or control, or to himself, for investigation, inquiry or disposal :

Provided that the Custodian may entertain a petition direct under any section if he so deems fit.

6. *Appointment of managers.*—Any manager appointed under clause (b) of sub-section (2) of section 20 shall, if required, furnish a security to the satisfaction of the Custodian, and shall act under the general superintendence and control of the Custodian, or, if the Custodian so directs, of an Additional, Deputy or Assistant Custodian, or such officer or person to whom the Custodian delegates any of his functions.

III. EXECUTIVE.

7. *Taking possession of property.*—(1) Where any property is to be taken possession of, the Custodian or any person authorised by him in this behalf may take possession,—

- (a) if the property is immovable property, by evicting the person in possession, supervision or management thereof, or by sealing the premises, or by serving on such person a notice directing him to pay the rent, lease money or licence fee, as the case may be, to the Custodian or to any person duly authorised to receive such payment ;
- (b) if the property consists of a debt or legacy or interest payable on a debt or legacy, by serving on the person liable to pay a notice directing him to pay to the Custodian or to any person duly authorised to receive such payment ;
- (c) if the property consists of stock or shares in a company, by informing the principal officer of the company that the stock or shares have vested in the Custodian ;

(2) Where the Custodian or any person authorised by him in this behalf takes possession of any movable property including stock-in-trade, plant or machinery, he shall prepare an inventory in duplicate in the presence of not less than two respectable residents of the locality, and shall give a copy of the inventory to the person from whom possession is taken or, in his absence, to one of the persons in whose presence the inventory is prepared.

THE CUSTODIAN OF TRANSFERRED PROPERTY ACT, 1947. ^{attached or}
(3) A record of all property taken possession of shall be made in registers in such form as the Custodian may direct.

8. *Description of property allotted and particulars of allottee to be furnished under section 14.*—The Rehabilitation Authority making an allotment of evacuee property shall furnish to the Custodian, as required by sub-section (3) of section 14, information as follows in respect of the property allotted and the person to whom it has been allotted, namely :—

(a) *Description of the property*—

- (i) Name of the owner before the first day of March, 1947, and his present address, if known, and also his last address in Pakistan;
- (ii) a statement showing in detail the type and situation of the property, its area or capacity, and the purpose for which it was used before the aforesaid date;
- (iii) any special features which may be taken into consideration in determining the terms and conditions on which the property may be let.

(b) *Particulars of the allottee*.—

- (i) Name of the allottee and his present address; if a refugee, also his last address in India or area occupied by India and the date on which he entered Pakistan;
- (ii) a recommendation as to the most suitable terms and conditions.

9. *Sanction to prosecution.*—No report under section 32 shall be made without the previous sanction in writing of the Custodian, or, if empowered by the Custodian in this behalf, any Additional or Deputy Custodian.

IV. PROCEDURAL.

10. *Service of notice, etc.*—Service or publication of any notice, summons or order issued under the Ordinance shall be effected in one or more of the following modes, namely :—

- (a) by giving or tendering it to the person concerned or his manager or agent if any;
- (b) by leaving it at the last known place of business or residence of the person concerned or giving or tendering it to some adult member of his family;
- (c) by sending it by registered post;
- (d) by affixing it on some conspicuous part of the premises concerned or at the last known place of business or residence of the person concerned;
- (e) by publication in a newspaper or proclamation by beat of drum in the locality.

11. *Holding of inquiries, etc.*—For the purpose of framing, signing and verification of petitions, and in relation to proceedings involving the holding of an inquiry, the procedure laid down in the Code of Civil Procedure, 1908 (Act V of 1908), shall, as far as possible, and subject to such modifications as the Custodian may direct, be followed.

12. *Procedure for confirmation under section 16.*—(1) An application for confirmation under sub-section (2) of section 16 shall contain full particulars of the property, the name of the transferor and his present address, if known, the nature of the transaction sought to be confirmed. [✓] *(transferor)*

*4. Inco. & Encls. by Mty. of Ref. & Rel. Notified (4) 151 P. A. - 67-51,
S. No. Gaz. of Pakistan, 1951, Pt. I, Sec. I, p. 528.*

and the consideration paid or deferred together with the date or dates on which paid.

(2) The application shall be presented within sixty days of the date of publication of these Rules or the date of execution of the instrument effecting the transaction sought to be confirmed, whichever be later, and any period during which the completion of such transaction is prohibited by any law for the time being in force in the area in which the property is situate shall be excluded.

(3) The application shall be accompanied by a certificate in terms of section 3 of the Transfer of Property (Pakistan) Ordinance, 1947 from the Inspecting Assistant Commissioner of Income-tax of the area in which the property is situate or such other officer as may be duly appointed in this behalf, or, in the absence of such certificate an affidavit declaring why such certificate is not attached, and by a duly attested copy of the instrument effecting the transaction sought to be confirmed and of such other documents as may be relied upon, and shall bear a court-fee stamp of Rupees twenty or Rupees ten according as the value of the consideration does or does not exceed Rupees ten thousand.

(4) Where an application for confirmation is pending on the date of publication of these Rules, the applicant, if necessary, shall amend the application and make up any deficiency in court-fee stamp in accordance with this rule within thirty days from such date, unless the Custodian, on sufficient cause being shown, extends the said period.

(5) The Custodian shall cause a notice to be served on the respondent, and the Rehabilitation Authority of the area in which the property is situate, and on any other person likely to be interested in or affected by the result of the application, and may also cause a public notice to be published in a newspaper at the expense of the applicant.

13. *Procedure in relation to claims under section 18.*—(1) An application in relation to a claim under sub-section (1) of section 18 shall contain full particulars of the property, the nature of the right or interest claimed therein, and the facts on which the claim is based.

(2) The application shall be presented within sixty days of the date of publication of these Rules or the date on which the cause of action accrued to the applicant, whichever be later, and the time requisite for obtaining a certified copy of the order treating the property as evacuee property shall be excluded.

(3) The application shall be accompanied by a certified copy of the order treating the property as evacuee property, or where no such copy is available, by an affidavit to the effect that the property has been or is likely to be or to have been treated as evacuee property, and shall bear Court-fee stamp of Rupees ten.

(4) The provisions of sub-rules (4) and (5) of rule 12 shall apply, *mutatis mutandis*, to an application under sub-section (1) of section 18.

14. *Procedure for restoration under section 19.*—(1) An application for restoration under sub-section (1) of section 19 shall contain full particulars of the property sought to be restored, the name and address of any other person interested or likely to be interested therein, and the facts on which restoration is applied for.

(2) The application shall be accompanied by an affidavit declaring that the applicant is the owner of the property or his heir or survivor,

and by a certificate such as is referred to in sub-section (1) of section and shall bear a Court-fee stamp of Rupees ten.

(3) The provisions of sub-rules (4) and (5) of rule 12 shall apply *mutatis mutandis*, to an application under sub-section (1) of section 19

(4) The applicant shall, before any order for restoration is made produce a "No demand certificate" from the relevant branches of the office of the Custodian.

15. *Issue of certificate by the Central Government for restoration under section 19.*—(1) An application for a certificate such as is referred to in sub-section (1) of section 19 shall be made to the Secretary to the Government of Pakistan in the Ministry of Refugees and Rehabilitation in accordance with the provisions of sub-rules (1) and (2) of rule 14, at the provisions of sub-rule (4) of rule 12 shall, *mutatis mutandis*, apply.

(2) No certificate shall be issued if the property sought to be restored is required for the purpose of rehabilitation of refugees or social or economic rehabilitation in Pakistan.

16. *Reference to civil Court under section 19.*—The Custodian may refer an applicant seeking restoration of property under section 19 to a civil Court for the determination of his claim and title to the property sought to be restored where there is another claimant contesting the applicant or where the matter is complicated and it is not in the interest of the parties or the property to make the necessary adjudication in a summary inquiry.

17. *Appeal, revision and review.*—(1) An appeal under sub-section (1) of section 36 shall be presented within thirty days, of the date of the order appealed against.

(2) An application for revision under sub-section (4) of section 36 shall be made within thirty days of the date of the order sought to be revised.

(3) An application for review under sub-section (5) of section 36 shall be made within thirty days of the order sought to be reviewed, but the Custodian may review his own order *suo motu* at any time.

(4) No fees shall be chargeable under this Act in respect of copies or inspection might for the purpose of any department of a Central or Provincial Government or the Government of any acceding state. period

Every application for revision shall be in writing and shall set forth, concisely, the grounds on which the order appealed against, or sought to be revised or reviewed, is attached, without any argument or narrative, and such grounds shall be numbered consecutively, and the memorandum or application shall be signed and verified by the person presenting the same.

(6) Every memorandum of appeal and every application for revision, or review shall be accompanied by a certified copy of the order appealed against or sought to be revised or reviewed and shall bear court-fee stamp of Rupees ten.

(7) The provisions of sub-rules (4) and (5) of rule 12 shall apply, *mutatis mutandis*, to an appeal or application under section 36.

4. Deleted + Ins. by Mf. of Ref. + Rel. Wf. No. F. 25(6)/50-P. A-12-2
See Gaz. of Pakistan, 1951, Pt. I, Sec. I, p. 74.

18. *Miscellaneous applications.*—Save as otherwise expressly provided, applications specified below shall bear court-fee stamp as indicated against each:—

Application under clause (9) of section 2 for approval of "unauthorised person"	Rupees ten.
Application under section 17 for permission to register	Rupees ten.
Application under clause (b) of sub-section (2) of section 20 for appointment as manager	Rupees ten.
Application under clause (k) of sub-section (2) of section 20 for recovery of debt	Rupees ten.
Any other application filed in the course of any proceedings	Rupee one.

19. *Inspection and copying fees.*—(1) The following fees shall be paid in court-fee stamp by any person obtaining a copy from any record maintained by the Custodian, namely:—

(i) copy of a receipt or chalan	Rupee one.
(ii) Copy of a final original order	Rupees two.
(iii) Copy of a final order in appeal, revision or review	Rupees three.
(iv) Copy of any application, affidavit, or statement	Rupees two.
(v) Copy of any other document	Rupees four.

(2) Any person interested in any record maintained by the Custodian may, with the permission of such Custodian and for such period as he may specify, inspect such record on payment of Rupees two in court-fee stamp.

(3) Any person permitted to inspect a record under sub-rule (2) may take short notes from such record, but he shall not copy any document contained therein.

V. MISCELLANEOUS.

20. *Administration fee under section 38.*—Before any other expenditure is incurred in accordance with any of the provisions of the Ordinance or these Rules, a fee equivalent to ten per centum of the gross income or proceeds from any property vested in or taken possession of by the Custodian shall be realised by the Custodian for purposes of administration generally:

21. [The fee in respect of any year shall be assessed on the gross income obtainable for that year if the property were to be leased]

22. *Manner in which expenditure may be incurred.*—(1) Subject to the provisions of the preceding rule and of any rule made under sub-section (1) of section 20 of the Pakistan Rehabilitation Ordinance, 1948 (XIX of 1948), the Custodian may, subject to the provisions of sub-rules (2) and (3), incur expenditure, as far as possible, in the following order, namely:—

(a) Payment of all taxes, duties, cesses and rates and claims by Government departments outstanding against the evacuee or

1. Added by Ministry of Ref. & Reh. Notifu. No. F. 21(16)/50-Pt. 57-4-12-50.

(See Gazette of Pakistan, 1950, Pt. I, S. 1, p. 644)

2. Subs. by the Gazette of Pakistan, 1951, Pt. I, Sec. I, p. 54 (No. 7).
Ref. & Reh. Notifu. No. F. 23(7)/50-Pt. 57-27.1.51.

payable in respect of any property belonging to him and vested in or taken possession of by the Custodian.

- * (b) Payment towards such measures as may be taken to keep the property in good repair or carry on the business or undertaking of the evacuee :

Provided that the cost of normal repairs to any urban immovable property shall not exceed ten per centum of the rent of such property ;

- (c) Payment in respect of special repairs or completion of or addition to any building, or replacement or installation of machinery in any factory, belonging to the evacuee :

Provided that such payment shall be charged to the capital value of the building or factory, as the case may be ;

- (d) Payment in respect of demolition or dismantling of such property as cannot be repaired ;

- (e) Payment towards costs of suits or other proceedings conducted on behalf of the evacuee ;

- (f) Payment of any sums due to any employee of the evacuee ;

- ✓ (g) Repayment of any debt due by the evacuee to any person ;

- (h) Any other payment necessary in the discharge of his duties.

Note.—Any expenditure incurred before the promulgation of these Rules which would have been referable to clause (b) of this sub-rule, on the ground of having been incurred on urgently needed repairs, may subject to the limit specified in the said clause, be sanctioned by the Custodian with retrospective effect, as if it had been incurred under this sub-rule.

✓ (2) In respect of payments under clauses (c) and (h) of sub-rule (1), the Custodian shall not incur expenditure exceeding Rupees ten thousand in regard to any particular unit or item except in accordance with such directions as the Central Government may from time to time give in this behalf.

(3) No payment shall be made unless the Custodian is satisfied as to the validity of the claim or the necessity of the requirement in respect of which payment is to be made.

(4) Where sufficient funds are not available to the credit of the evacuee, payment may be deferred until funds are available, or, if the Custodian is of the opinion that payment cannot be so deferred, he may, subject to the provisions of the Ordinance and these Rules, make payment by resorting, as far as possible in that order, to one or more of the following means, namely :—

- (a) granting on the security of any property belonging to such evacuee such loans as may be necessary from moneys held by the Custodian ;

- * (b) sale of such property belonging to the evacuee as the circumstances of the case require ;

- (c) appropriation from moneys held by the Custodian ;

- * (d) sale of such property vested in or taken possession of by the Custodian as the circumstances of the case may require.

22. *Payment for maintenance of refugees.*—(1) Subject to such instructions as the Central Government may from time to time issue in this regard, the Custodian may, out of the moneys held by him, make

payment, by way of maintenance allowance, to any refugee from any of the following areas, namely :—

The Provinces of Delhi, East Punjab, East Punjab States, and the States of Bharatpur, Alwar and Bikaner.

(2) No maintenance allowance shall be paid to any refugee unless—

- (a) he has left immovable property in any of the areas specified in sub-rule (1) yielding an yearly income of not less than Rupees one thousand eight hundred ; and
- (b) he is not allotted any land, building, business or property other than residential accommodation ; and
- (c) he has not been offered or has not refused any employment under Government ; and
- (d) he has no means of subsistence in Pakistan ; and
- (e) he gives an undertaking to the satisfaction of the Custodian that any amount paid by way of maintenance allowance shall be repaid in such manner as the Custodian may determine.

(3) The amount of maintenance allowance granted to any refugee under this rule, or such allowance *plus* the income accruing to the applicant in Pakistan, shall not exceed one-third of the estimated income of such refugee from the property left by him in the areas specified in sub-rule (1).

(4) Any amount paid to any refugee under this rule shall be a charge on any property owned or acquired by such refugee or on the income of any property allotted to him, and shall be repaid by such refugee or adjusted against the income of his property in the area specified in sub-rule (1).

23. *Investment of evacuee money.*—(1) Any money held by the Custodian and not invested by him in accordance with clause (g) of sub-section (2) of section 20 shall be deposited into the Treasury for credit to the banking deposit account opened in accordance with the rules applicable to Personal Deposits.

(2) The Custodian may grant, from out of the moneys held by him, advance of loans to or to the account of any evacuee on such terms and conditions as he may think fit, or make payments to refugees in accordance with the provisions of the preceding rule.

24. *Audit under section 22.*—The accounts maintained by the Custodian shall be audited, as far as possible, annually, by a staff of peripatetic auditors, in accordance with such instructions as the Auditor General of Pakistan may from time to time issue in this regard.

25. *Exemption from fees.*—The Custodian may, with the previous approval of the Central Government, exempt any person or property or memorandum or application or any class of persons or properties or memoranda or applications from the payment of any fees imposed by these Rules, whether payable in court-fees or otherwise.

M. W. ABBASI,
Secy. to the Govt. of Pakistan.

MINISTRY OF REFUGEES AND REHABILITATION

Karachi, the 27th January 1951

✓ **No. F. 23 (7)|50-P.**—In exercise of the powers conferred by section 46 of the Pakistan (Administration of Evacuee Property) Ordinance, 1949 (XV of 1949), the Central Government is pleased to direct that the following further amendment shall be made in the Administration of Evacuee Property Rules, 1950, namely :—

In the proviso to rule 20, for the words "the fee shall be assessed on an estimated value of the property" the words "the fee in respect of any year shall be assessed on the gross income obtainable for that year if the property were to be leased" shall be substituted.

L. H. SPINKS, Dy. Secy.

MINISTRY OF REFUGEES & REHABILITATION

Karachi, the 6th September 1951

✓ **No. F. No. 21 (4)|51-P.**—In exercise of the powers conferred by section 46 of the Pakistan (Administration of Evacuee Property) Ordinance, 1949 (XV of 1949), the Central Government is pleased to direct that the following further amendments shall be made in the Administration of Evacuee Property Rules, 1950, namely :—

- (a) in sub-rule (3) of rule 7, after the word "property" the words "attached or" shall be inserted; and
- (b) in sub-rule (1) of rule 12, for the word "transfer" the word "transferor" shall be substituted.

L. H. SPINKS, Dy. Secy.

MINISTRY OF REFUGEES AND REHABILITATION

Karachi, the 12th February 1951

✓ **No. F. 23 (6)|50-P.**—In exercise of the powers conferred by section 46 of the Pakistan (Administration of Evacuee Property) Ordinance, 1949 (XV of 1949), the Central Government is pleased to direct that the following amendments shall be made in the Administration of Evacuee Property Rules, 1950, namely :—

- (a) sub-rule (4) of rule 17 shall be deleted;
- (b) the following new rule shall be inserted after rule 17, namely :—

"17A. *Limitation.*—The provisions of sections 4, 5 and 12 of the Limitation Act, 1908 (IX of 1908), or similar provisions in any other enactment relating to limitation for the time being in force in the area in which an appeal or an application is presented shall apply, so far as may be, in computing the period of limitation prescribed in these rules."

L. H. SPINKS, Dy. Secy.

MINISTRY OF REFUGEES & REHABILITATION

Karachi, the 4th December 1950

✓ **No. F. 21 (16)|50-P.**—In exercise of the powers conferred by section 46 of the Pakistan (Administration of Evacuee Property) Ordinance, 1949 (XV of 1949), the Central Government is pleased to make the following amendments in the Administration of Evacuee Property Rules, 1950, namely :—

Amendments.

1. In sub-rule (2) of Rule 12, for the words "by any law" the words "by or under any law" shall be substituted.

2. To Rule 19, the following sub-rule shall be added, namely :—

"(4) No fees shall be chargeable under this Rule in respect of copies or inspection might on behalf of any department of a Central or a Provincial Government or the Government of any acceding State".

L. H. SPINKS, Dy. Secy.